

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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GUILLERMO ORTIZ on behalf of himself and as Father and
Natural Guardian of JONATHAN ORTIZ,

Plaintiffs,

-against-

**AMENDED
COMPLAINT**

10 CV 8999

JURY TRIAL DEMANDED

ECF CASE

THE CITY OF NEW YORK, P.O. DERYK BLAIR, Shield No. 9068, Individually and in his Official Capacity, DEPUTY INSPECTOR KENNETH LEHR, Individually and in his Official Capacity, LT. RAYMOND JANSEN, Individually and in his Official Capacity, LT. PATRICK FERGUSON, Individually and in his Official Capacity, SGT. MARISOL LEON-SMITH, Individually and in his Official Capacity, P.O. TIMOTHY DONOHUE, Individually and in his Official Capacity, P.O. SCOTT LIENECK, Individually and in his Official Capacity, P.O. DOUGLAS SCHACK, Individually and in his Official Capacity, P.O. EDILIA FIGUEREDO, Individually and in her Official Capacity, P.O. MARIA VELIZ, Individually and in her Official Capacity, P.O. ANA BELL, Individually and in her Official Capacity, P.O. JAMES SECRETO, Individually and in his Official Capacity, P.O. EDWARD THOMPSON, Individually and in his Official Capacity, P.O. JOHN SIVORI, Individually and in his Official Capacity, and P.O.s "JOHN DOE" #1-10, Individually and in their Official Capacities, (the name "John Doe" being fictitious, as the true names are presently unknown),

Defendants.
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Plaintiff GUILLERMO ORTIZ on behalf of himself and as Father and Natural Guardian of JONATHAN ORTIZ by his attorney, JON L. NORINSBERG, complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights,

as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988, and the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Southern District of New York under U.S.C. §1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff GUILLERMO ORTIZ and his son JONATHAN ORTIZ are citizens of the United States, and at all relevant times are residents of the City and State of New York.

7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

9. That, at all times hereinafter mentioned, the individually named defendants, P.O. DERYK BLAIR, DEPUTY INSPECTOR KENNETH LEHR, LT. RAYMOND JANSEN, LT. PATRICK FERGUSON, SGT. MARISOL LEON-SMITH, P.O. TIMOTHY DONOHUE, P.O. SCOTT LIENECK, P.O. DOUGLAS SCHACK, P.O. EDILIA FIGUEREDO, P.O. MARIA VELIZ, P.O. ANA BELL, P.O. JAMES SECRETO, P.O. EDWARD THOMPSON, P.O. JOHN SIVORI, and P.O.s "JOHN DOE" #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That, at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

13. On April 6, 2010, at approximately 5:30 a.m., plaintiff GUILLERMO ORTIZ and JONATHAN ORTIZ were lawfully present in their home at 765 F.D.R. Drive, Apartment 1H, County of New York, City and State of New York.

14. At the aforesaid time and place, plaintiff GUILLERMO ORTIZ was awakened by the sound of loud banging on his front door.

15. GUILLERMO ORTIZ then attempted to answer the door but the door was kicked in

by several of the defendants, causing plaintiffs to suffer significant shock and fear.

16. When plaintiff GUILLERMO ORTIZ attempted to inquire as to what was going on, defendant officers shouted “Shut the fuck up!” in response.

17. Once inside the premises, defendant officers repeatedly shouted at plaintiffs to “Get the fuck down!” and “Get on the fucking floor!”.

18. The defendants then took GUILLERMO ORTIZ and JONATHAN ORTIZ into custody, even though they had no lawful basis for doing so.

19. Several defendants then stayed behind in plaintiffs’ home in order to search the premises, while the other officers took plaintiffs to the 9th Precinct.

20. During the course of this search, defendants rampaged through the premises and tore a part plaintiff’s apartment, leaving it in shambles and destroying plaintiff’s personal effects.

21. Defendants did not recover any drugs from the subject premises.

22. Defendants did not recover any weapons or other contraband from the subject premises.

23. After unlawfully detaining plaintiffs for approximately five hours in the precinct, the defendants released plaintiffs GUILLERMO ORTIZ and JONATHAN ORTIZ without charging the plaintiffs with any crime.

24. As a result of the foregoing, plaintiffs’ liberty was restricted for an extended period of time, and they were put in fear for their safety, were humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

25. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "24" with the same force and effect as if fully set forth herein.

26. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

27. All of the aforementioned acts deprived plaintiffs GUILLERMO ORTIZ AND JONATHAN ORTIZ of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

29. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

30. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

31. The acts complained of deprived plaintiffs GUILLERMO ORTIZ and JONATHAN ORTIZ of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure not based upon probable cause;
- C. Not to have excessive force imposed upon them;
- D. Not to have summary punishment imposed upon them; and

E. To receive equal protection under the law.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "31" with the same force and effect as if fully set forth herein.

33. As a result of defendants' aforementioned conduct, plaintiffs GUILLERMO ORTIZ and JONATHAN ORTIZ was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings, without any probable cause, privilege or consent.

34. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "34" with the same force and effect as if fully set forth herein.

36. Defendants searched plaintiffs GUILLERMO ORTIZ and JONATHAN ORTIZ in the absence of any individualized reasonable suspicion that plaintiffS was concealing weapons or contraband.

37. As a result of the foregoing, plaintiffs GUILLERMO ORTIZ and JONATHAN ORTIZ was subjected to an illegal and improper search.

38. The foregoing unlawful search violated plaintiffs GUILLERMO ORTIZ and JONATHAN ORTIZ's constitutional right to privacy, as guaranteed by the Third, Fifth, and

Fourteenth Amendments to the United States Constitution.

39. By reason of the aforesaid conduct by defendants, plaintiffs GUILLERMO ORTIZ and JONATHAN ORTIZ request the following relief:

- A. Compensatory damages in the amount of five hundred thousand dollars (\$500,000);
- B. Punitive damages in the amount of five hundred thousand dollars (\$500,000);
- C. An award of reasonable attorney's fees pursuant to 42 U.S.C. § 1988, as well as costs and disbursements; and
- D. Any further relief as the Court may find just and proper.

Dated: New York, New York
September 27, 2011

/S

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